

JBLM FORGE Request for Prototype Proposal (RPP)

Request for Prototype Proposal (RPP) SOLICITATION NUMBER– W51EW7-26-R-A007

Amendment 01

“Other Transaction” Authority under 10 U.S.C. 2808(a)

Joint Base Lewis-McChord (JBLM) FORGE



Issued by:

The United States of America

Mission & Installation Contracting Command (MICC)

2219 Infantry Post Road Office Symbol CCMI-TSC

JBSA Fort Sam Houston, TX 78234-1361



Concerning

JBLM FORGE

Supported by AMC, IMCOM, and JBLM DPW

Request Issue Date April 17, 2026, 2026

Amendment 01 Released April 29, 2026

Prototype Proposal Due Date: **May 20, 2026 at 2:00pm EDT**

Questions will only be accepted until 13 May 2026 12:00pm EDT

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1. Executive Summary

The Joint Base Lewis-McChord (JBLM) Facilities Modernization Program is an initiative aimed at enhancing the infrastructure and operational capabilities of the base, which serves both the U.S. Army and Air Force. This program is designed to address aging facilities, improve operational efficiency, and support the needs of service members and their families. This agreement operates under a pilot program under which prototype projects that are directly relevant to enhancing the ability of the Department of Defense to prototype the design, development, or demonstration of new construction techniques or technologies to improve military installations or facilities.

Key components of the modernization program include:

- **Infrastructure Upgrades:** Renovation and construction of barracks, training facilities, administrative buildings, and maintenance shops to meet current standards and accommodate modern military operations.
- **Sustainability Initiatives:** Incorporation of sustainable practices and technologies to reduce the environmental impact of base operations, including energy-efficient systems and water conservation measures.
- **Enhanced Training Facilities:** Development of advanced training environments, including simulation centers and specialized training areas, to better prepare service members for current and future missions.
- **Community Improvements:** Upgrades to recreational facilities, family housing, and support services to enhance the quality of life for military personnel and their families.
- **Collaboration and Integration:** Coordination with local government and community organizations to ensure that modernization efforts align with regional development plans and support community integration.

The JBLM Facilities Modernization Program reflects a commitment to maintaining a state-of-the-art military installation that meets the evolving needs of the U.S. Armed Forces while fostering a supportive environment for service members and their families. Through these improvements, JBLM aims to enhance readiness, morale, and overall mission effectiveness.

This RPP is focused on establishing a pilot program to demonstrate considerable time and costs savings along with project innovation for U.S. Army Facility Modernization Efforts.

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2. Administrative

2.1 Request for Prototype Proposals (RPP)

The MICC is seeking an accelerated award of the resulting OTA. There will be quick turnarounds for potential partners to consider and observe throughout the proposal process.

2.2 Funding Availability

The U.S. Government (USG) intends to establish funding of approximately \$235 Million for this effort in both direct and indirect cost that includes all design and construction costs born by the successful OTA awardee.

The USG may provide additional funding and/or time for this project without any new competition. This depends on the results of the current work and what is delivered. This could be for increasing the project's scope or for follow-up work.

Please be aware:

The estimated funding for this project is an approximation and could be changed. All awards and funding are dependent on federal funds being available for this program.

2.3 Single Award

The MICC intends to make a single award to one qualified offeror to complete the entire scope of the OTA work. However, if the MICC determines that no single offeror can accomplish the entire work specified within this RPP, then the MICC may ask offerors to work together and make multiple awards under this RPP.

2.4 Period of Performance

The period of Performance will not exceed 60 months.

2.5 Acquisition Approach

The law, under 10 U.S.C. § 2808(a), allows the government to issue a non-competitive production follow on agreement or transaction after the current project is successfully finished.

This means that if all the work is completed as expected, the government can choose to continue to the production phase without opening the opportunity to other bidders. This is often done to streamline the process for projects that are continuations of successfully executed projects. This authority is a flexible tool intended to help the Department of Defense get access to innovative solutions more quickly.

2.6 Additional Government Participation

The U.S. government may add additional Federal, State, or Local Government partners to the RPP or the resulting OTA.

2.7 Use of an Architect-Engineer (AE) firm

The U.S. Government intends to use an AE firm to assist with oversight during performance under this agreement. The Government will rely on Agreement Officers (AO) and Agreement Officer Representative (AOR) to provide technical directions to the Agreement contractor.

2.8 Warranty Requirements

A one-year Warranty Management Plan will be required at time of project completion. Please see details below.

The Contractor shall provide and manage a comprehensive one-year warranty covering all aspects of the work performed under this contract, including all materials, labor, and installation. This warranty period shall begin upon Government acceptance of the work. Work acceptance may be completed in phases and warranty dates may be staggered as such. Following written notification of a warranty issue, the Contractor shall respond and take corrective action within a timeframe appropriate to the urgency of the problem. Upon completion of any warranty repair, the Contractor shall submit a report detailing the cause of the issue, the corrective action taken, and the date of completion. The one-year warranty for any corrected work will restart from the beginning upon completion of the repair.

To ensure all warranties are properly documented and managed, the Contractor shall submit a detailed Warranty Management Plan as a closeout submittal. This plan must first be submitted in a preliminary phase, outlining the contractor's proposed system for managing warranty service, including the roles and responsibilities of personnel, and the proposed response and repair times for issues of varying priority.

Prior to project completion, the Contractor shall deliver the final Warranty Management Plan. This final submittal shall act as a comprehensive register of all warranties and include:

1. All manufacturer warranty certificates and information for any new equipment or components installed.
2. A detailed list of all equipment, materials, and systems covered by the one-year construction warranty.
3. For each warranted item, the register must specify the name of the item, model/serial number, its location, the warranty term with start/expiration dates, and the name, address, and telephone number of the point of contact for initiating warranty service.
4. The warranty management plan shall detail that any warranty provided shall not limit the Government's rights to inspect or accept any aspects of the work performed with respect to latent defects, gross mistakes, and/or fraud.

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2.9 Bond Letter

Bond Letter: The Offeror shall provide a letter from a qualifying surety that validates the ability to provide bonding at the contract's program ceiling and specifies the Offeror's aggregate and single project limits, remaining bond capacity, and impact anticipated from the proposed contract. The contract value could fluctuate up to \$250 Million/5-year contract. Any fluctuations in the contract maximum value will require the bond to match dollar for dollar up to a maximum of \$250m.

3. Technical Requirements

3.1 Specifications and Codes: Offerors shall apply the Unified Facilities Criteria (UFC) apply unless otherwise excepted or exempted within this RPP. Offerors are expected to propose UFC exemption or exceptions to be utilized to decrease agreement costs and decrease time to complete construction projects.

3.1.1. Codes: The Contractor shall comply with, the most recent edition, at time of solicitation, of, all pertinent Local, State, and Federal building and life/health/safety codes, to include the following:

- i. Applicable Unified Facilities Criteria (UFC)
- ii. UFC 4-010-01 UFC DoD minimum Antiterrorism Standards
- iii. UFC 1-200-01: General Building Requirements
<http://www.wbdg.org/ffc/dod/unified-facilities-criteria-ufc/ufc-1-200-01>
- iv. UFC 3-420-01: Plumbing Systems and International Plumbing Code
- v. UFC 1-200-02: High Performance and Sustainable Building Requirements
<https://www.wbdg.org/ffc/dod/unified-facilities-criteria-ufc/ufc-1-200-02>
- vi. ASA IE&E SDD policy
https://www.wbdg.org/FFC/ARMYCOE/POLICY/Army_SDD_Policy_Update_2017.pdf
- vii. UFC 1-201-01 Non-Permanent DOD Facilities in Support of Military Operations
- viii. EM 385-1-1
(<http://www.publications.usace.army.mil/USACEPublications/EngineerManuals.aspx>)
- ix. National Electrical Code, NFPA 70
- x. National Fire Protection Association (NFPA) Codes
- xi. Telecommunication Industry Association/Electrical Industry Association Wiring Standards (Building Telecommunication Wiring Standards)
- xii. JBLM Design Standard specifications
(<https://www.jblmdesignstandards.army.mil/>)
- xiii. JBLM Master Plan, which includes Architectural Appearance Standards
- xiv. PWE-707, Standard Operating Procedure for Construction and Demolition (C&D) Waste Planning and Reporting (available through government Project Manager [PM])
- xv. National Pollutant Discharge Elimination System (NPDES) small Municipal Separate Storm Sewer Systems (MS4) Permit No. WAS-026638. Use guidance documents found at https://home.army.mil/lewis-mcchord/index.php/my-Joint-Base-Lewis-Mcchord/all-services/public_works-environmental_division/stormwater
- xvi. PWE-020 Ozone Depleting Chemical (ODC) and Non-Exempt Substitute Management Plan

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- xvii. Washington Administrative Code (WAC) 173-340 Model Toxics Control Act-Cleanup
- xviii. UFC 3 580-01: Telecommunications Interior Infrastructure Planning and Design <https://www.wbdg.org/ffc/dod/unified-facilities-criteria-ufc/ufc-3-580-01>
- xix. Standard for Electrical Safety in the Workplace, NFPA 70E
- xx. Latest editions of ASHRAE Standards and Guidelines

3.2 There is a brief technical description found in Attachment 001: JBLM FORGE Project Descriptions that each offeror should include in their prototype proposal.

3.3 Please reference Attachment 002 for further technical and administrative requirements.

3.4 Offeror's shall plan that each employee will require full vetting through the Installation Visitor Control Center (VCC) to include criminal background checks. The U.S. Government may decrease the visitor vetting requirements.

3.5 Requirements for the Issuance of Common Access Cards

Before CAC issuance, the employee(s) of the selected Offeror (i.e., "contractor employee") requires, at a minimum, a favorably adjudicated National Agency Check with Inquiries (NACI) or an equivalent or higher investigation in accordance with Army Directive 2014-05. The contractor employee will be issued a CAC only if performance of the prototype project involves one of the following: (1) Both physical access to a DoD facility and access, via logon, to DoD networks on- site or remotely; (2) remote access, via logon, to a DoD network using DoD-approved remote access procedures; or (3) physical access to multiple DoD facilities or multiple non-DoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more.

At the discretion of the sponsoring activity, an initial CAC may be issued based on a favorable review of the FBI fingerprint check and a successfully scheduled NACI at the Office of Personnel Management.

Additional details related to the CAC Request Process will be provided, if determined necessary, after award of any Agreement.

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4. Prototype Proposal Submission

***There will be an on-site visit scheduled for **05 and 06 May 2026** at JBLM.

Registration is required by 29 April 2026 12:00 EDT. Instructions for registration are live on Sam.Gov. There will not be a virtual option provided and there will be no make-up sessions. Dates are subject to change. Details for the site visit will be provided on Sam.Gov***

4.1 Prototype proposals are due by the due date on the cover page of this RPP. Proposal shall remain valid for the U. S. Government Acceptance for 210 days.

4.1.1 Late submissions will not be accepted. Pages that exceed the required page limitations listed in section 4.2 and 4.3 will be removed, not read and will not be evaluated by the Government.

4.2 Technical Volume: Consists of Design and Construction Capabilities as outlined in Section 5.2 must be submitted in PDF format and is limited to 60 pages. Drawings and Prints from a CAD system are not included in the page limit.

4.3 Price/Cost Volume

The cost volume must provide all cost data and should be sent in it's own separate email. It must be an excel file. Any cost narratives will be limited to 10 pages and should NOT include any technical data. Offerors shall submit prices for all CLIN's.

The Government contemplates award of a Firm-Fixed-Price (FFP) contract for all CLINs. CLINs may be changed to Options depending on funding availability. Evaluation of the Option CLINs will not obligate the Government to exercise the Option.

Submission of Alternate Pricing Options

The Government seeks to maximize efficiency, innovation, and cost savings in the execution of the complete portfolio of projects listed in this solicitation. Offerors are allowed to submit one alternate pricing and execution options that demonstrate different methodologies to accomplish those projects.

If an offeror chooses to submit alternate pricing options, the following conditions and instructions apply:

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Requirement	Description
Baseline Submission	Offerors MUST first submit a standard price and technical proposal that adheres strictly to the baseline requirements, individual project structure, and schedule outlined in the solicitation. Baseline proposals must be clearly marked. Failure to clearly mark the baseline proposal could result in a rejection.
Comprehensive Scope	Any proposed alternate option MUST encompass the successful completion of all projects listed in the Statement of Work/Performance Work Statement. Alternate proposals that omit one or more projects could potentially be evaluated lower than substantiated proposals that include all projects and meet price expectations.
Option Structuring	Offerors may present multiple distinct execution and pricing options (e.g., Option A: Phased Execution, Option B: Concurrent Execution, Option C: Grouped by Geography or Trade). Each option must be clearly labeled and submitted as a separate section within the Alternate Proposal volume.
Detailed Pricing & Savings Justification	Each alternate option must include a comprehensive price breakdown. A comprehensive price breakdown includes the cost elements that build up to the proposed price. Cost elements should include Direct Labor (labor positions, hours, and labor rates), Indirect Costs (Fringe/Overhead and/or G&A), any Material/Other Direct Costs (ODC), any Subcontract Costs, and Profit. Offerors must explicitly identify the source of any cost savings or efficiencies presented in the option (e.g., shared mobilization/demobilization costs, economies of scale, optimized resource leveling, or supply chain consolidation).
Schedule and Risk Impacts	Offerors must detail how each alternate option affects the overall delivery schedule for the complete project portfolio. The offeror must also identify any unique risks introduced by the alternate execution strategy and propose appropriate mitigation plans.
Government Rights	The Government reserves the right to evaluate and select the baseline proposal or any proposed alternate option that

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	provides the overall Best Value to the Government for the completion of all listed projects.
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4.5 Submit all files to the email address at usarmy.jbsa.acc-micc.mbx.tsc-div1@army.mil. You may need to separate the files and submit multiple emails.. Please indicate the number of each email with the total number of emails (e.g. Email 1 of x) and please follow the following naming convention [Contractor Name]_JBLM FORGE_Prototype Proposal_EMAIL 1 of X. Emails should be limited to 25 MB size. DoD safe is an alternative to submitting large files. Contact the AO 72 hours before submitting large files to request a DOD safe link.

4.6 Offerors should submit files in Microsoft Office formats or Adobe Acrobat (PDF – portable document format) as indicated below. ZIP files and other application formats are not acceptable. All files must be print-capable, searchable, and without a password required. Filenames must contain the appropriate filename extension (.docx, .doc, .pptx, .ppt, .xlsx, .xls or .pdf). Filenames should not contain special characters. Apple users must ensure the entire filename and path are free of spaces and special characters.

4.7 Rejection of Proposals

The Government may reject any proposal if in the Government's best interest at any time after receipt of proposal. Examples include, but are not limited to, the following proposal conditions:

- a. Failure to secure Bonding Capability as outlined in 2.9 of the Request for Proposal
- b. A proposal merely offers to perform work according to the solicitation terms or fails to present more than a statement indicating its capability to comply with the solicitation terms and does not provide support and elaboration.
- c. The proposal contains one or more Organizational Conflicts of Interest (OCIs) that cannot be avoided or mitigated.
- d. The proposal contains unbalanced pricing.
- e. The proposal is not in English (American Standard) or in US Dollars.

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f. All projects must be priced either in FFP CLINS (that will fit within the anticipated allocated funds see the RPP at 2.2) or in an FFP option CLIN within the offeror's proposal.

g. Offerors must acknowledge all RPP amendments and amendment dates.

5. Selection

5.1 Following a preliminary screening, the Agreements Officer will forward all compliant prototype proposals to the Government for a comprehensive evaluation. Each proposal will be independently assessed against the evaluation factors detailed in this RPP. The Government's evaluation will result in an adjectival rating (as defined in Table 1) for all non-cost/price factors. Offerors must articulate how they intend to meet and, if possible, exceed the RPP's requirements; a mere restatement of a requirement is insufficient. The Government will select the best overall offer, based upon an integrated assessment of Design, Construction Capabilities and Cost Savings Potential/Overall Costs. An agreement may be awarded to the Offeror whose proposal conforms to the solicitation's requirements (to include all stated terms, conditions, representations, certifications, and all other information required by this solicitation) and is judged by an overall assessment of the evaluation factors and sub-factors to represent the most advantageous offer to the Government. As part of making the assessment, a best value analysis will be performed determining whether exceeding the minimum requirements at an associated price provides the best value to the Government.

The evaluation factors and evaluation criteria are described below in descending order of importance.

5.2 Evaluation Factors

1. Technical Approach and Design
2. Construction capabilities
3. Cost Savings Potential / Overall Costs

5.3 Technical approach and Design

Offerors prototype proposals will be evaluated for:

1. Design(s) that meets the technical specifications within this RPP,
2. Innovation and efficiency,

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3. Recommends UFC sections to be eliminated or altered for cost or time savings, UFGS, JBLM Design Standards, Attachment 002 Contract 01 Specifications_JBLMFORGE_RPP,
4. is complete and thorough,
5. brings commercial practices to the USG,
6. Quality Control & Management
- 6.1 Project quality evaluation consideration:
- 6.2 Ensuring Quality in Construction: What is the Contractor's approach to ensuring aggressive timelines do not degrade quality of construction;
- 6.3 Submittal/product approval timelines and interaction with the Government.
- 6.4 How does an offeror provide opportunities for inspection without slowing down production rates
7. and offers innovation where asked under attachment 001. Innovation must not reduce reliability or operability.

5.4 Construction Capabilities

Offerors' prototype proposals will be evaluated for the offeror's:

1. construction capabilities,
2. Staffing and Key Personnel,
3. Offeror's realistic ability to complete all projects according to a USG accepted design,
4. A construction schedule that shows the maximum number of projects completed within one calendar year from project award,
5. Schedule showing the rest of the projects are completed as efficiently as possible while maintaining cost savings and quality of construction as key metrics.
6. Coordination with JBLM private utilities. The successful contractor shall be responsible for the comprehensive coordination of all utility services and any required outages for the duration of the project. All utility outages, including but not limited to water, sewer, electrical, and natural gas—must be formally coordinated and approved a minimum of 14 calendar days in advance to minimize disruption to operations. This includes close coordination with the privatized utility owners. For all work related to water and sanitary sewer systems, the contractor must coordinate directly with American Water (AW) for connections, modifications, and inspections. Similarly, any activities impacting the electrical distribution system require direct coordination with City Light & Power (CLP). For work affecting natural gas infrastructure, the contractor

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must coordinate with the service provider, Puget Sound Energy (PSE). Adherence to the standards, requirements, and inspection protocols of these utility entities is mandatory for all related work and must be discussed with the Government at all stages.

i.

7. And any other information that the offeror can provide that tends to demonstrate new construction techniques or technologies to improve military installations or facilities.

5.5 Price and Cost Saving Potential

The Price Proposal will be evaluated on whether the price proposal provided to the Government includes up to 19 projects within the estimated \$235 M total budget and provides a clear, detailed price breakout for each project as a separate CLIN. Proposals that substantiate including all 19 projects and substantiate exceeding the criteria above represent the best value to the U.S. Government.

The offeror should capture cost saving opportunities within the proposal for each key area by noting the specific effort to be altered, reduced or eliminates, and the associated cost reductions:

1. Administrative
 - a. e.g. –Reducing the required number of submittals.
2. Technical Approach & Design
3. Construction Capabilities & Schedule

5.6 Adjectival Merit Ratings.

Table 1 below notes the adjectival ratings that will be assigned to the evaluation factors.

Table 1: Adjectival Merit Ratings

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Rating	Description
Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation, and thus, contains one or more deficiencies, and/or risk of unsuccessful performance is unacceptable. Proposal is not awardable.

5.7 General terms used in Evaluations, Defined

Significant Strength. An aspect of an offerors' proposal that has appreciable merit or appreciably exceeds specified performance or capability requirements in a way that will be appreciably advantageous to the Government during contract performance.

Strength. An aspect of an offerors' proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.

Weakness. A flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness. A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance.

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Deficiency. A material failure of a proposal to meet a government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Uncertainty. Any aspect of a non-cost/price factor proposal for which the intent of the offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission or mistake).

6. Agreements Officer and Contacts

6.1 The Agreements Officer is:

Charley G. Jackson, Jr
Agreements Officer / Division Chief

HQ Mission & Installation Contracting Command (MICC)
Theater Support Center (TSC)
2219 Infantry Post Road
JBSA Fort Sam Houston, TX 78234-1361
Office Symbol CCMI-TSC

Teams Phone Number (571) 588-9138

Please send all email to usarmy.jbsa.acc-micc.mbx.tsc-div1@army.mil you may CC the AO's NIPR email at charley.g.jackson2.civ@army.mil.

6.2 The U.S. Government will appoint both primary and alternate Agreements Officer Representative (AORs) with the OTA award. All Agreements Officer Representatives (AORs) will have a letter detailing duties and responsibilities which will be provided to the selected offer with OTA award.

6.2.2 The planned AORs are:

Primary:

Alternates:

7. Data and Intellectual Property Rights

7.1 The JBLM FORGE program's success is contingent upon the practical application of its intellectual property. All generated intellectual property assets—including designs, technical data, software, and inventions—must be transitioned into specific military or commercial applications. Intellectual property is defined to include, but is not limited to, inventions, reports, technical data, software, computer codes and trade secrets.

1. DEFINITIONS.

“Data” means computer software, computer software documentation, and technical data (as defined in DFARS 252.227-7013 and DFARS 252.227-7014).

“Government purpose rights” means the rights to (i) use, modify, reproduce, release, perform, display, or disclose Data within the Government without restriction; and (ii) release or disclose Data outside the government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose that Data for United States Government purposes. Government Purpose Rights will allow the Government the right to practice, obtain, reproduce, publish, or otherwise use in any part of the world for purposes of the Government (including competitive procurement), and to authorize others to do so for Government purposes. Government purposes do not include the right to use, modify, reproduce, release, perform, display, or disclose technical data for commercial purposes or authorize others to do so.

“Unlimited rights” means rights to use, modify, reproduce, perform, display, release, or disclose Data in whole or in part, in any manner, and for any purpose whatsoever, and to have or authorize others to do so.

“Technical data” means recorded information, regardless of the form or method of the recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or data incidental to contract administration, such as financial and/or management information.

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“Form, fit, and function data” means technical data that describes the required overall physical, functional, and performance characteristics (along with the qualification requirements, if applicable) of an item, component, or process to the extent necessary to permit identification of physically and functionally interchangeable items.

“Computer software” means computer programs, source code, source code listings, object code listings, design details, algorithms, processes, flow charts, formulae and related material that would enable the software to be reproduced, recreated, or recompiled. Computer software does not include computer data bases or computer software documentation.

“Computer software documentation” means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

2. DATA RIGHTS

The Government shall select the following Data Rights Scheme for any Prototype Project Award (PPA) under this OTA:

The following types of Data generated or developed by the Vendor while performing under this Agreement or a subsequent PPA will be furnished or delivered to the Government with Unlimited Rights: form, fit, and function data; data necessary for operation, maintenance, installation, or training purposes (other than detailed manufacturing data); studies, analyses, test data, or similar data; and computer software documentation.

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The license rights for all other Data generated or developed by the Vendor while performing under this Agreement or a subsequent PPA may be negotiated prior to award of any PPA awarded under this OTA.

3. DATA RIGHTS ASSERTIONS

Vendors are required to specifically identify Data Rights Assertions related to Data deliverables. A Vendor's failure to submit, complete, or sign the aforementioned Data Rights Assertions with its offer may render the proposal ineligible for award of a PPA. The Vendor's Data Rights Assertions must comply with the content and formatting requirements for Data and Software Rights Assertions set forth in DFARS 252.227-7017. More specifically, the Vendor's Data Rights Assertions shall comply with the following requirements:

1. The Vendor shall not assert license restrictions on items, component, or processes themselves. The asserted license restrictions shall pertain to software or technical data that relates to items, components, or processes.
2. The Vendor's Assertions shall not include Data that will not be furnished to the Government under this PPA.
3. The Vendor shall provide a concise (but specific) description of the Data deliverables that will be furnished to the Government with restrictions, rather than generically asserting license restrictions in "technical data" or "technology".
4. The Vendor is responsible for ensuring that Data Rights Assertions from its subcontractors comply with the aforementioned content and formatting requirements.

Vendors shall provide Data Rights Assertions in a tabular format prescribed in DFARS 252.227-7017. However, in addition to the content and formatting

requirements set forth in DFARS 252.227-7017, the Vendor's Data Rights Assertions table shall list Data items that the Vendor intends to furnish to the Government with and without license restrictions. Thus, the Data/Software Rights Assertions table may include technical data and software items that are provided to the Government with an "unlimited rights" license. Further, the Vendor shall comply with the restrictive marking requirements set forth in DFARS 252.227-7013(f) and DFARS 252.227-7014(f).

5. PATENTS –

Relative to patents, the Vendors agree to incorporate by reference the following FAR and DFARS clauses: FAR 52.227-1, FAR 52.227-2, FAR 52.227-3, DFARS 252.227-7038 (or FAR 52.227-11 and DFARS 252.227-7038, if Small Business or Nonprofit Organization). Relative to all of the FAR and DFARS clause references throughout this section, the term "contract" shall read "Agreement", the term "contractor" shall read "Vendor", and the term "Contracting Officer" shall read "Agreements Officer."

6. JOINT SUBJECT INVENTIONS –

Title to a Subject Invention made jointly by a Government employee and a Vendor employee –shall be held jointly by the Government and the Vendor. The Vendor shall have the initial option to file a patent application on a joint subject invention at its own expense. If the Vendor declines to file or complete prosecution of a patent application, the Vendor waives co-ownership interest and agrees to assign its title to the joint subject invention to the Government.

7. COPYRIGHT –

Works Created Solely by the Vendor: A Vendor retains all ownership to copyrights for original works of authorship created solely by Vendor's employees in the course of performance of work under this Agreement. The Vendor grants to the Government a royalty-free, nonexclusive, irrevocable license in accordance with the Data Rights provisions of the PPA.

Jointly Created Works: Ownership to copyrights for original works of authorship created jointly by a Government employee and a Vendor employee in the course of

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performance of work under this Agreement is vested in the Vendor. The Vendor grants to the Government a royalty-free, nonexclusive, irrevocable license in accordance with the Data Rights provisions of the PPA.

Copyright Statement: A Vendor will include the following statement on any text, drawing, mask work or other work of authorship that may be copyrighted under Title 17 of the US Code, which is created in the performance of this Agreement: “The U.S. has a copyright license in this work pursuant to an Other Transaction Agreement.”

Copyright Notice: The Vendors may include a notice of copyright as prescribed in Section 401 or 402 of Title 17 of the US Code.

Flow Down: The Vendor shall include this Article, suitably modified, in all subawards as a result of issuance of a Agreement.

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8. Terms and Conditions

Successful awardee will be responsible for following the Terms and Conditions outlined Attachment 004, "MICC_CONSTRUCTION_OTA_T&C_FORGE ver04022026". The Agreements Officer is required to implement the law at a minimum.

Davis Bacon Act

Buy American Act

Miller Act

CMMC

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9. Acronyms

AE	Architect-Engineering
AMC	Army Materiel Command
AO	Agreement Officer
AOR	Agreement Officer Representative
ASA IE&E	Assistant Secretary of the Army for Installations, Energy and Environment
ASHRAE	American Society of Heating, Refrigerating, and Air Conditioning Engineers
CAC	Common Access Card
CSAM	Construction Scale Additive Manufacturing
CSRP	Central Shipping and Receiving Point
CTC	Combat Transaction Authority
DFARS	Defense Federal Acquisition Regulation Supplement
DOD	Department of Defense
DOW	Department of War
DPW	Directorate of Public Works
FAR	Federal Acquisition Regulation
FORGE	Facilities, Operations, Readiness, Growth and Experience (FORGE)
IMCOM	Installation Management Command
JBLM	Joint Base Lewis McChord
JBSA	Joint Base San Antonio
JRTC	Joint Readiness Training Center
MICC	Mission and Installation Contracting Command
NACI	National Agency Check with Inquiries
NAICS	North American Industry Classification System
NFPA	National Fire Protection Association
NIPR	Non-Classified Internet Protocol Router Network
OTA	Other Transaction Authority
PCAS	Post Construction Award Services
PDF	Portable Document File
SDD	Sustainable Design and Development
SOO	Statement of Objectives
TSC	Theater Support Center
UFC	Unified Facilities Criteria
UFGS	Unified Facilities Guide Specifications
USG	United States Government
U.S.C.	United States Code
VCC	Visitor Control Center

10. Definitions

1. The term "military construction" as used in this chapter or any other provision of law includes any construction, development, conversion, or extension of any kind carried out with respect to a military installation, whether to satisfy temporary or permanent requirements, or any acquisition of land or construction of a defense access road (as described in section 210 of title 23). A military construction project includes all military construction work, or any contribution authorized by this chapter, necessary to produce a complete and usable facility or a complete and usable improvement to an existing facility (or to produce such portion of a complete and usable facility or improvement as is specifically authorized by law).
2. The term "appropriate committees of Congress" means the congressional defense committees and, with respect to any project to be carried out by, or for the use of, an intelligence component of the Department of Defense, the Permanent Select Committee on Intelligence of the House of Representatives and the Select Committee on Intelligence of the Senate.
3. The term "facility" means a building, structure, or other improvement to real property.
4. The term "life-cycle cost-effective", with respect to a project, product, or measure, means that the sum of the present values of investment costs, capital costs, installation costs, energy costs, operating costs, maintenance costs, and replacement costs, as estimated for the lifetime of the project, product, or measure, does not exceed the base case (current or standard) for the practice, product, or measure.
5. The term "military installation" means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense, without regard to the duration of operational control.
6. The term "Secretary concerned" includes the Secretary of Defense with respect to matters concerning the Defense Agencies.

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11. Attachments

Number	Title	Revision Date	# of Pages
0001	ATTACH0001_FY26 JBLM FORGE-- Project List 20260414	April 14, 2026	Excel
0002	ATTACH0002Contract 01 Specifications_JBLMFORGE_RPP	April 14, 2026	21
0003	ATTACH0003 MICC_CONSTRUCTiON_OTA_T&C_FORGE ver 04082026	April 08, 2026	88
0004	ATTACH0004 JBLM FORGE CLIN STRUCTURE	April 16, 2026	1
0005A	Project 1_Attachment 0005 A Scopes_07 Apr 2026	April 07, 2026	178
0005B	Project 1_Attachment 0005 B Scopes_07 Apr 2026	April 07, 2026	178
0005C	Project 1_Attachment 0005 C Scopes_07 Apr 2026	April 07, 2026	178
0006	Project 2_Attachment 0006 Scopes_07 Apr 2026	April 07, 2026	4
0007	Project 3_Attachment 0007 Scopes_07 Apr 2026	April 07, 2026	13
0008	Project 4_Attachment 0008 Scopes_07 Apr 2026	April 07, 2026	17
0009	Project 5_Attachment 0009 Scopes_07 Apr 2026	April 07, 2026	33
0010	Project 6_Attachment 0010 Scopes_07 Apr 2026	April 07, 2026	13
0011	Project 7_Attachment 0011 Scopes_07 Apr 2026	April 07, 2026	87
0012	Project 8_Attachment 0012 Scopes_07 Apr 2026	April 07, 2026	3
0013	Project 9_Attachment 0013 Scopes_07 Apr 2026	April 07, 2026	4
0014	Project 10_Attachment 0014 Scopes_07 Apr 2026	April 07, 2026	4
0015	Project 11_Attachment 0015 Scopes_07 Apr 2026	April 07, 2026	5
0016	Project 12_Attachment 0016 Scopes_07 Apr 2026	April 07, 2026	103
0017	Project 13_Attachment 0017 Scopes_07 Apr 2026	April 07, 2026	34

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0018	Project 14_Attachment 0018 Scopes_07 Apr 2026	April 07, 2026	33
0019	Project 15_Attachment 0019 Scopes_07 Apr 2026	April 07, 2026	33
0020	Project 16_Attachment 0020 Scopes_07 Apr 2026	April 07, 2026	33
0021	Project 17_Attachment 0021 Scopes_07 Apr 2026	April 07, 2026	18
0022	Project 18_Attachment 0022 Scopes_07 Apr 2026	April 07, 2026	13
0023	Project 19_Attachment 0023 Scopes_07 Apr 2026	April 07, 2026	17